

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Omolade	Team: Team # 2	CCRB Case #: 201307237	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/02/2013 12:40 PM	Location of Incident: Rockaway Parkway and Kings Highway	18 Mo. SOL 2/2/2015	Precinct: 67
Date/Time CV Reported Fri, 08/02/2013 4:03 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/09/2013 1:46 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Pugliese	12760	953278	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Earl Rochester	31302	953326	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Pugliese	Force: PO William Pugliese pointed his gun at § 87(2)(b)	A . Unsubstantiated

Case Summary

On August 2, 2013, § 87(2)(b) called the Internal Affairs Bureau Command Center to file this complaint (encl. 3A-B). IAB Log # 13-33571 was generated and the case was received at the CCRB on August 9, 2013 (encl. 4A)). On August 2, 2013, at approximately 2:54 a.m., § 87(2)(b) was driving his vehicle when he was pulled over by PO William Pugliese and PO Earl Rochester for expired tag stickers. § 87(2)(b) was subsequently issued three summonses. The following allegation ensued.

- **Allegation A: Force- PO William Pugliese pointed his gun at § 87(2)(b)**

§ 87(2)(g)

it is recommended that Allegation A be closed **unsubstantiated**.

This case was not eligible for mediation.

Results of Investigation

Civilian Statement:

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black man. § 87(2)(b), with black hair and brown eyes.
- § 87(2)(b)

CCRB testimony

§ 87(2)(b) also provided a telephone statement on August 13, 2013 (encl. 5). § 87(2)(b) was interviewed at the CCRB on September 4, 2013 (encl. 7A-B). § 87(2)(b)'s statements were consistent.

On August 2, 2013, at approximately 12:40 a.m., § 87(2)(b) was driving alone in a white limousine and turned onto Kings Highway in Brooklyn. The limousine was described as a Lincoln, 2003 model, with New York license plates. (The summonses § 87(2)(b) were issued show that his vehicle had Virginia State license plates.) A marked police vehicle, behind § 87(2)(b) sounded its sirens once or twice and § 87(2)(b) pulled over on the highway emergency lane, which was the only place to park on the eight lane highway. § 87(2)(b) did not commit any vehicle infraction before his stop.

PO William Pugliese, the passenger of the police vehicle was identified via investigation and described as a white man in uniform, 5'5" tall, 165 pounds, about 37 years old, with blond hair and blue eyes. PO Pugliese walked up to the passenger side and asked for license and registration. PO Pugliese also asked if there was a gun or anything illegal in the vehicle. § 87(2)(b) replied no and handed over his license, his new and old insurance and his registration. PO Earl Rochester, identified via summonses, remained in the vehicle. PO Pugliese told § 87(2)(b) to wait and went back to his police vehicle. Suddenly, several officers in a police van and four marked police vehicles arrived to the scene. PO3, who remained unidentified, walked towards § 87(2)(b)'s vehicle and said the car is not stolen and returned to the other officers. PO3 was described as a Hispanic man, 5'6" tall, 165 pounds, slick hair combed to the back, about 37 years-old, perhaps wearing a sergeant's gold badge, and in uniform. PO3

returned to PO Pugliese and PO Rochester and a couple of other officers, and huddled for approximately 45 minutes.

§ 87(2)(b) stayed in his vehicle and made sure his hands were up in the air and visible. PO3 and the other officers left in their vehicles while PO Pugliese and PO Rochester remained on the scene. PO Rochester walked towards § 87(2)(b) and told him there was a misunderstanding with his insurance and asked why he provided two insurance cards. Through § 87(2)(b)'s peripheral view, he could see PO Pugliese slowly approaching the passenger side of the limousine holding his gun chest high in a sharpshooter position and aimed at § 87(2)(b)'s head. § 87(2)(b) told PO Rochester that he gave him his old and new registration. PO Pugliese had pointed his gun at § 87(2)(b)'s head for approximately five seconds and then put his gun in his holster.

§ 87(2)(b) asked PO Pugliese why he aimed his gun at his head. PO Pugliese denied pointing his gun at § 87(2)(b)'s head and said that was how he holstered his gun. PO Rochester then issued several summonses to § 87(2)(b) including improper identification card and an unregistered vehicle. There were other summonses issued, but § 87(2)(b) could not recall what they were for. PO Pugliese and PO Rochester left in their vehicle and § 87(2)(b) drove away.

§ 87(2)(b) has never interacted with PO Pugliese, PO Rochester, and PO3 before this incident. PO Pugliese and PO Rochester did not return § 87(2)(b)'s license. A spin off was generated and referred to OCD in regards.

Attempts to Contact Civilians

NYPD Statements:

Subject Officer: PO WILLIAM PUGLIESE

- *PO Pugliese is a § 87(2)(b) white man, § 87(2)(b), with black hair and brown eyes.*
- *On August 2, 2014, he was assigned to impact auto with PO Rochester, working in uniform from 7:30 pm until 4:05 p.m., and assigned to marked vehicle #4646.*

Memo Book

On August 2, 2014, at 12:40 a.m., there was a car stop at the intersection of Kings Highway and East 93rd Street. Expired tag sticker. At 12:50 a.m., upon issuing summons, perpetrator asked PO Rochester why he pointed his weapon at his head. PO Pugliese informed him that he keeps his weapon out for his safety. Three summonses were issued to perpetrator by PO Rochester 31302 (encl. 9A-D).

CCRB Statement

PO Pugliese was interviewed at the CCRB on March 21, 2013 (encl. 9F-G). On August 2, 2013, at approximately 12:40 a.m., PO Pugliese, the recorder and PO Rochester initiated a car stop for an expired tag sticker on the license plate of motorist, § 87(2)(b) failed to pull over and continued driving. PO Rochester used their sirens a little more and § 87(2)(b) finally stopped in the middle of the street on the zebra stripes of Kings Highway and then pulled over to the left of the street. A run of § 87(2)(b)'s license plates on the Lincoln Town car he drove went back to a Honda. Although the Honda was not stolen, this seemed suspicious to them. PO Pugliese then saw that § 87(2)(b) was fidgeting by dropping his shoulders and then moving his right hand around in the driver's seat. § 87(2)(b) was also leaning to the right side of his vehicle. Although it was dark outside, PO Pugliese was able to see this because their vehicle lights were shining into § 87(2)(b)'s car.

PO Rochester approached § 87(2)(b) on the driver's side of the vehicle. PO Pugliese approached on the passenger side with his firearm drawn and pointed towards the ground and behind his leg. § 87(2)(b)'s fidgeting coupled with the fact that § 87(2)(b) did not comply right away when he was instructed to stop his vehicle, made PO Pugliese suspicious. PO Rochester asked for § 87(2)(b)'s vehicle documents and proceeded back to the patrol vehicle with PO Pugliese. At this time, PO Pugliese reholstered his firearm.

§ 87(2)(b)'s paperwork did not match the vehicle that he was operating. In their vehicle, PO Rochester and PO Pugliese discussed the inconsistencies and wrote up three summonses in the vehicle. PO Rochester and PO Pugliese approached § 87(2)(b)'s vehicle a second time. PO Pugliese approached again with his gun drawn, pointed to the ground and behind his right leg. This time, PO Pugliese did not fear for his safety as § 87(2)(b) did not give him a reason to. At no point during this incident did PO Pugliese point his gun at § 87(2)(b). PO Pugliese was still suspicious of § 87(2)(b) and was cautious of him the entire time. PO Rochester issued summonses to § 87(2)(b) for failure to produce valid insurance card, unregistered vehicle and improper use of plate. § 87(2)(b) then asked PO Rochester why PO Pugliese had a gun to his head. PO Pugliese told § 87(2)(b) that he had his gun out for his safety. Both officers proceeded back to their vehicles and left.

Witness Officer: PO EARL ROCHESTER

- PO Rochester is a § 87(2)(b) black man, § 87(2)(b), with black hair and brown eyes.
- On August 2, 2014, he was assigned post 40 at the beginning of his tour and then he was later assigned to patrol from 7:30 p.m., until 4:05 p.m., with PO Pugliese. They were both in uniform and assigned to marked vehicle #3194. PO Rochester was not sure the time that he was assigned to his vehicle.

Memo Book

PO Rochester had extensive memo book entries regarding the summonses issued to § 87(2)(b) (encl. 8A-D).

CCRB Statement

PO Rochester was interviewed at the CCRB on March 21, 2014 (encl. 8I-J). His statement was consistent with PO Pugliese's statement with the following inconsistencies.

§ 87(2)(b) provided his license and insurance alone. PO Rochester and PO Pugliese returned to their vehicle and ran § 87(2)(b)'s license plates. PO Rochester returned to § 87(2)(b)'s vehicle and noticed that § 87(2)(b) had Virginia plates and New York paperwork. PO Rochester asked § 87(2)(b) about this and he stated that he was taking care of everything and that his vehicle was registered. PO Rochester and PO Pugliese suspected § 87(2)(b) of GLA. Two officers patrolling the area were flagged down and PO Rochester checked § 87(2)(b)'s vehicle identification number (VIN) in their car, which came back to a Honda instead of the vehicle he was driving.

PO Rochester then prepared three summonses for failure to produce valid insurance card, unregistered vehicle, and improper use of plate. PO Rochester and PO Pugliese returned to § 87(2)(b)'s vehicle and issued him all three summonses. PO Pugliese stood on the passenger side of § 87(2)(b)'s vehicle. While PO Rochester explained the summonses to § 87(2)(b) he told PO Rochester that he had another set of license plates in the trunk of his vehicle. PO Rochester did not investigate any further.

§ 87(2)(b) then asked PO Rochester why PO Pugliese had a gun pointed at his head. PO Rochester was unaware of this but looked at § 87(2)(b)'s head as well as the space around him and did not see PO Pugliese's hand or gun near § 87(2)(b)'s head.

PO Rochester looked inside of § 87(2)(b)'s vehicle from where he stood and he did not see any part of PO Pugliese's body crossing over the threshold of § 87(2)(b)'s vehicle. PO Rochester did not see PO Pugliese draw his gun and he did not check to see if his gun was holstered. PO Rochester told § 87(2)(b) that he did not see a gun to his head and returned to the precinct with PO Pugliese.

NYPD Documents

Summons for Incident and Disposition

- § 87(2)(b) pled not guilty to the following summonses § 87(2)(b) which remain open. § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 8, 2014, more than seven months after the 90-day filing deadline, with regard to the incident (encl. 13).

Civilian's Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officer's CCRB History

- PO Pugliese has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. 1).

Conclusion

Identification of Subject Officer

PO Pugliese acknowledged interacting with § 87(2)(b)

Allegations Not Pled

Although PO Pugliese stated that he drew his gun, § 87(2)(b) alleged that PO Pugliese pointed his gun at his head. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Force- PO William Pugliese pointed his gun at § 87(2)(b)

It is undisputed that PO Pugliese drew his gun. § 87(2)(g) § 87(2)(b) stated that PO Pugliese approached his vehicle slowly while his gun was pointed at § 87(2)(b)'s head. § 87(2)(b) stated that he could see PO Pugliese through his peripheral view. PO Pugliese denied this and stated that he drew his gun and

pointed it towards the ground and positioned it behind his leg for his safety since § 87(2)(b) had failed to stop his vehicle immediately, was fidgeting in his vehicle and he could not see. PO Rochester did not see PO Pugliese draw his gun or point it at § 87(2)(b)'s head. However, both officers confirmed that § 87(2)(b) asked why PO Pugliese pointed his gun at § 87(2)(b)'s head.

§ 87(2)(g)

_____ It
is therefore recommend that Allegation **A** be closed **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date